WIND EASEMENT AGREEMENT

[PROJECT NAME]
[_____] County, State of [_____]

THIS WIND EASEMENT AGREEMENT (this "**Agreement**") is made, dated and effective as of [_____], 202[__] (the "**Effective Date**"), by and between **[_____]** (collectively, and together with [his/her/its/their] successors, assigns and heirs, comprising "**Owner**"), and **[INSERT INVENERGY PROJECT COMPANY]**, a **[**INSERT STATE] limited liability company (together with its transferees, successors and assigns, "**Grantee**"), and in connection herewith, Owner and Grantee agree, covenant and contract as set forth in this Agreement. Owner and Grantee are sometimes referred to in this Agreement as a "**Party**" or collectively as the "**Parties**".

1. **Wind Easement**. For good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged by Owner and Grantee, upon the terms and conditions set forth in this Agreement, Owner hereby grants and conveys to Grantee an exclusive easement to convert, maintain and capture the flow of wind and wind resources over, across and through the surface estate of that certain real property, including, but not limited to, the air space thereon, located in [_____] County, (the "**County**"), State of [_____]consisting of [_____( )] acres, as more particularly described in Exhibit A attached hereto and incorporated herein (the "**Property**") for the purposes set forth herein. For purposes of calculating acreage-based payment due under this Agreement, "**Net Acre**" or "**Net Acreage**" shall be used, which means the gross area of the portion of the Property being referred to, including all internal easements and rights-of-way but excluding any and all perimeter easements and dedicated rights-of-way. Net Acreage shall be determined by a survey prepared by a surveyor licensed in the state in which the Property exists.

1.1 Purposes of the Easement. This Agreement is solely and exclusively for wind energy purposes (as such term is broadly defined, including ancillary rights related thereto and necessary for the development and operation of Windpower Facilities (as defined below)), and not for any other purpose, and Grantee shall have the exclusive right to develop and use the Property for wind energy purposes and to derive all profits therefrom, including but not limited to the following activities (collectively, "**Windpower Activities**"):

(a) Converting wind energy into electrical energy, and collecting and transmitting the electrical energy so converted;

(b) Determining the feasibility of wind energy conversion and other power generation on the Property or on adjacent lands, including studies of wind speed, wind direction and other meteorological data, environmental conditions and extracting soil samples;

(c) Constructing, laying down, installing, using, replacing, relocating, reconstructing and removing from time to time, and monitoring, maintaining, repairing and operating the following only for the benefit of the Project or Projects (as defined below) (i) wind power generating machines, of any kind (including supporting towers, foundations and any other associated equipment or structures)(collectively, "**Wind Turbines**"); (ii) overhead and underground electrical distribution, collection, transmission and communications lines, electric transformers, electric substations, energy storage facilities, telecommunications equipment, and power generation facilities; (iii) roads and crane pads; (iv) meteorological towers and wind measurement equipment; (v) control buildings, operations and maintenance building, maintenance yards, temporary construction laydown and staging yards and related facilities and equipment; and (vi) undertaking any other activities, whether accomplished by Grantee or a third party authorized by Grantee, that Grantee reasonably determines are necessary, useful or appropriate to accomplish any of the foregoing (all of the above, including the Wind Turbines, collectively referred to as "**Windpower Facilities**"). The term "**Projec**t", for the purposes of this Agreement, means an integrated

wind energy generation system, consisting of Windpower Facilities, that is constructed and operated on the Property, and/or adjacent lands, by Grantee, or a third party authorized by Grantee. Grantee may determine whether any particular group of Windpower Facilities constitutes a single Project or multiple Projects for purposes of this Agreement, and in the case of multiple Projects, which portion of the Property shall be included within each Project.

1.2 Other Uses. Subject to Sections 9.2 and 9.5 below, Owner reserves the right to use the Property for any purpose other than wind energy purposes; provided, however, that such uses shall exclude use of the property for the development or generation of wind energy. During the Term when Grantee construction is or is about to occur, Owner agrees to provide Grantee with current information concerning the status and location of all other land uses occurring on the Property (including, without limitation, agricultural use, industrial use and oil and gas exploration and production activities). Any new leases or renewals and or extensions of existing leases, options to lease, seismic operations, or any other agreement made by Owner with a third party regarding the Property (including any of the foregoing related to water, oil, gas or other minerals) shall contain language that states that such third party shall not disturb, interfere with, preclude, or destroy Grantee's rights hereunder.

2. **Grant of Additional Easements**.

2.1 Owner hereby grants, conveys and warrants to Grantee the following additional easements upon, over, across and under the Property:

(a) Overhang. An exclusive easement to allow the rotors of Wind Turbines installed on adjacent land to overhang onto the Property;

(b) Non-Obstruct. An exclusive easement to capture, use and convert the unobstructed wind resources over and across the Property;

(c) Interference. An exclusive easement for electromagnetic, audio, flicker, visual, view, light, noise, vibration, air turbulence, wake, electrical, radio interference, shadow or other effects attributable to the Wind Turbines, or any other Windpower Activities;

(d) Access Easement. A non-exclusive easement for ingress to and egress from the Project or Projects (whether located on the Property, on adjacent property or elsewhere) over and across the Property by means of roads and lanes thereon if existing or later constructed by Owner, or otherwise by such route or routes as Grantee may construct from time to time;

(e) Other Easements. All other easements reasonably necessary to accomplish the activities permitted by this Agreement, including but not limited to those activities described in Section 1.1.

3. **Term**.

3.1 Development Term. This Agreement shall be for an initial term (the "**Development Term**") commencing on the Effective Date and continuing until the earlier to occur of: (a) the date on which Grantee begins production of electrical energy generated by substantially all of the Wind Turbines to be included in the Project or (b) the [_____]th (__th) anniversary of the Effective Date. Upon the occurrence of subsection (a), that date, as declared by Grantee, shall be the "**Operations Date.**"

3.2 First Extended Term. Upon the expiration of the Development Term, the term of this Agreement shall automatically extend for an additional twenty-five (25) year term (the "**First Extended Term**").

3.3 Second Extended Term. Provided that Grantee has not fully surrendered or terminated this Agreement, then on or before the expiration of the First Extended Term, Grantee may, at its

option, extend the term of this Agreement for an additional twenty-five (25) year period (the "**Second Extended Term**", collectively with the Development Term and First Extended Term, the "**Term**"). Grantee may exercise its option to extend this Agreement for the Second Extended Term by giving Owner written notice thereof on or before the date that is one hundred and eighty (180) days prior to the expiration of the First Extended Term.

4. **Payments to Owner**. In consideration of the rights granted hereunder, Grantee will pay Owner the amounts set forth in Exhibit B attached hereto. Exhibit B shall not be recorded without the specific prior written consent of Grantee.

5. **Ownership of Windpower Facilities**. Owner shall have no ownership, lien, security or other interest in any Windpower Facilities installed on the Property, or any profits derived therefrom, and Grantee may remove any or all Windpower Facilities at any time. Except for payments to Owner described in this Agreement, including Exhibit B, Owner shall not be entitled to any other payments or benefits accrued by or from the Project, including, but not limited to, renewable energy credits, environmental credits (including, without limitation, soil carbon sequestration and phosphorous credits) or tax credits.

6. **Taxes**. Owner shall pay all taxes, assessments, or other governmental charges, general and specific, that shall or may during the Term be imposed on, or arise in connection with the Property itself; provided, however, during the Term, Grantee shall be liable for any incremental increase in such taxes, assessments, or other governmental charges directly resulting from the presence of the Windpower Facilities on the Property ("**Grantee Taxes**"). To the extent the applicable taxing authority provides a separate tax bill for the Grantee Taxes to Grantee, Grantee shall pay such Grantee Taxes directly to the applicable taxing authorities prior to the date such Grantee Taxes become delinquent. If a separate tax bill for the Grantee Taxes is not provided to Grantee, Grantee shall pay the Grantee Taxes within thirty (30) days following receipt of written demand from Owner of the amount of the Grantee Taxes with a copy of the applicable tax bill. Both Parties shall pay their respective tax bills when due and if either Party fails to make such payments when due, then the other Party may, but shall not be obligated to, pay the taxing authorities the entire amount due on the tax bill, including any interest and/or penalties, and obtain reimbursement for such amount paid on behalf of such Party plus interest (computed from the date of full payment) at a rate equal to the sum of: (i) two percent (2%) per annum; plus, (ii) the prime lending rate as from time to time may be published by The Wall Street Journal under the "Money Rates" section; provided, that in no event shall such total interest exceed the maximum rate permitted by applicable law. If Grantee pays taxes, assessments, and/or real property taxes on behalf of Owner that are Owner's obligation hereunder, Grantee may offset the amount of such payments against amounts due Owner under this Agreement.

7. **Indemnity/Liability**.

7.1 Each Party (the "**Indemnifying Party**") shall defend, indemnify and hold harmless the other Party and such other Party's Related Persons (as defined below) (each, an "**Indemnified Party**") from and against any and all third party (excluding Related Persons) claims, litigation, actions, proceedings, losses, damages, liabilities, obligations, costs and expenses, including reasonable attorneys', investigators' and consulting fees, court costs and litigation expenses (collectively, "**Claims**") suffered or incurred by such Indemnified Party, arising from the negligence or intentional misconduct of the Indemnifying Party. Notwithstanding the foregoing to the contrary, Grantee may elect, upon written notice, to control any or all aspects of the defense of any legal action covered by the prior sentence.

7.2 In no event shall either Party be liable to the other Party to the extent any Claim is caused by, arising from or contributed by the negligence or intentional misconduct of such other Party or any Related Person thereof.

7.3 Except for payments expressly required herein, in no event, whether as a result of breach of contract, warranty, indemnity, tort (including negligence), strict liability or otherwise, shall either Party be liable to the other Party for loss of profit or revenues, loss of business opportunities or for any other special, consequential, incidental, indirect or exemplary damages.

7.4 In no event shall Grantee or its Related Persons be liable to Owner for property damage or personal injuries to Owner or its Related Persons attributable to risks of known and unknown dangers associated with normal day-to-day operation of electrical generating facilities, such as flickering, noise and electromagnetic fields.

7.5 In no event shall either Party or its Related Persons be liable to the Other Party for expenses incurred in such other Party's lawful enforcement of its rights under this Agreement for a default during any applicable cure period.

7.6 As used herein the term "**Related Person**" shall mean:

(a) With respect to Owner, any principals, employees, servants, guests or invitees of Owner or those third persons over whom Owner exercises actual control; or

(b) With respect to Grantee, any affiliates, contractors, lessees, and sublessees of Grantee, and each of their respective, principals, officers, employees, servants, agents, representatives, subcontractors, licensees, invitees, and/or guests.

7.7 This Section 7 shall survive the expiration or earlier termination of this Agreement.

8. **Grantee's Representations, Warranties, and Covenants**. Grantee hereby represents, warrants, and covenants to Owner that:

8.1 Grantee's Authority. Grantee has the unrestricted right and authority to execute this Agreement. Each person signing this Agreement on behalf of Grantee is authorized to do so. Upon execution by all Parties hereto, this Agreement shall constitute a valid and binding agreement enforceable against Grantee in accordance with its terms.

8.2 Minimal Impacts. Grantee agrees to conduct its Windpower Activities and to locate and operate its Windpower Facilities in such a way as to reasonably minimize impacts to the Property and to Owner's activities on the Property, to the extent practical, without negatively impacting the Project(s). At least fifteen (15) days prior to Grantee commencing construction of the Windpower Facilities on the Property, Grantee shall provide Owner with a site plan indicating the approximate proposed location of the Wind Turbines and access roads. No later than five (5) days after receipt of the site plan from Grantee, Owner shall provide Grantee with all, if any, suggestions or concerns Owner has regarding the proposed site plan. Grantee shall consider in good faith any such suggestions or concerns Owner may have with the siting of such Wind Turbines and access roads and shall implement those that, in Grantee's reasonable discretion, do not negatively impact the Project. Grantee shall operate and maintain the Windpower Facilities in good order and repair throughout the Term. Grantee shall not store materials, vehicles or equipment on the Property, except to the extent that such materials, vehicles and equipment are directly connected with the construction, operation and/or maintenance of the Windpower Facilities. If Owner's Property is fenced, all access roads constructed by Grantee on the Property shall be gated by Grantee at Grantee's expense, and Owner shall be furnished with keys or other ability to open and close such gates. The terms "commencing construction" and "commencement of construction" as used in this Agreement shall mean that date on which Grantee begins excavation on a Wind Turbine foundation on the Property. If any event of Force Majeure (as defined in Section 14.1) occurs which requires, in Grantee's reasonable discretion, relocation of Grantee's Windpower Facilities, then subject to the terms and conditions of this Agreement including those contained in this Section 8.2 and the payment provisions set

forth herein, Grantee shall have the right to relocate such Windpower Facilities on the Property at its sole cost and expense.

8.3 Insurance. Grantee shall, at its expense, be responsible for assuring that insurance coverages, as would be customary and reasonable for similarly situated companies performing the work carried out by Grantee at such time, are maintained, including, without limitation, adequate coverage to cover any personal injuries or accidents that could reasonably be expected as a direct result of the Windpower Activities conducted by Grantee or its Related Persons on the Property.

8.4 Requirements of Governmental Agencies. Grantee, at its expense, shall comply in all material respects with valid laws, ordinances, statutes, orders, and regulations of any governmental agency applicable to the Windpower Facilities. Grantee shall have the right, in its sole discretion, to contest by appropriate legal or administrative proceedings, the validity or applicability to Grantee, the Property or Windpower Facilities of any law, ordinance, statute, order, regulation, property assessment, or the like now or hereafter made or issued by any federal, state, county, local or other governmental agency or entity. Any such contest or proceeding shall be controlled and directed by Grantee.

8.5 Construction Liens. Grantee shall keep the Property free and clear of all liens and claims of liens for labor and services performed on, and materials, supplies, or equipment furnished to, the Property in connection with Grantee's use of the Property pursuant to this Agreement; provided, however, that if Grantee wishes to contest any such lien, Grantee shall, at Grantee's sole discretion and within sixty (60) days after it receives written notice of the filing of such lien, either (i) provide a bond to Owner for the amount of such lien, or (ii) provide Owner with title insurance insuring Owner's interest in the Property against such lien claim.

8.6 Hazardous Materials. Neither Grantee nor its Related Persons shall violate any federal, state, or local law, ordinance, or regulation relating to the generation, manufacture, production, use, storage, release, discharge, disposal, transportation or presence of asbestos-containing materials, petroleum, explosives or any other substance, material, or waste which is now or hereafter classified as hazardous or toxic, or which is regulated under current or future federal, state, or local laws or regulations, on or under the Property (each, a "**Hazardous Material**"). Grantee shall promptly notify Owner if any violation occurs.

8.7 Special Conditions. Grantee agrees to abide by any special conditions enumerated in Exhibit C attached hereto.

9. **Owner's Representations, Warranties, and Covenants**. Owner hereby represents, warrants, and covenants as follow:

9.1 Owner's Authority. Owner is the sole owner of the Property and has the unrestricted right and authority to execute this Agreement and to grant to Grantee the rights granted hereunder. Each person signing this Agreement on behalf of Owner is authorized to do so. Upon execution by all Parties hereto, this Agreement shall constitute a valid and binding agreement enforceable against Owner in accordance with its terms. Each person/entity comprising Owner, as listed in the preamble to this Agreement, owns the fractional interest in the Property set forth below:

Owner:	***Name 1***	***Name 2***	***Name 3***	***Name 4***
Fractional Ownership:	***[__]%***	***[__]%***	***[__]%***	***[__]%***

9.2 No Interference. Owner's activities and any grant of rights Owner makes to any person or entity, shall not, currently or prospectively, disturb or interfere with: the construction, installation, maintenance, or operation of the Windpower Facilities, whether located on the Property or elsewhere; access over the Property to such Windpower Facilities; any Windpower Activities; or the undertaking of

any other Grantee activities permitted hereunder. Without limiting the generality of the foregoing, Owner's activities or any rights granted by Owner to a third party shall not (i) disturb or interfere with the wind speed or wind direction over the Property, whether by placing telecommunication towers or antennas, planting trees or constructing buildings or other structures, or by engaging in any other activity on the Property or elsewhere that could be reasonably expected to cause a decrease in the output or efficiency of the Windpower Facilities, or (ii) disturb the subsurface such that it could be reasonably expected to damage or interfere with the structural integrity of the Windpower Facilities.

9.3 Liens and Tenants. Except as may be disclosed in the real property records of the County, or as disclosed by Owner in writing to Grantee on or prior to the Effective Date, Owner represents there are no leases (including oil, gas and/or other mineral interests), easements, licenses, rights of way, mortgages, deeds of trust, liens, security interests, mechanic's liens or any other encumbrances encumbering all or any portion of the Property that could interfere with Grantee's operations on the Property, including mechanic's liens. If such Owner representation and warranty is breached and such breach is not caused by Grantee, then Owner shall fully cooperate and assist Grantee in removing or limiting such interference, including, but not limited to, obtaining a subordination and non-disturbance agreement where Grantee deems it necessary, with terms and conditions reasonably requested by Grantee to protect its rights hereunder, from each party that holds such rights (recorded or unrecorded), and in the case of monetary liens such as mechanic's liens, bonding over any such liens in an amount that may be reasonably requested by Grantee.

9.4 Requirements of Governmental Agencies and Setback Waiver. Owner shall assist and fully cooperate with Grantee, at no out-of-pocket expense to Owner, in complying with or obtaining any land use permits and approvals, building permits, environmental impact reviews or any other permits and approvals required for the financing, construction, installation, monitoring, repair, replacement, relocation, maintenance, operation or removal of Windpower Facilities, including, but not limited to, execution of applications and documents reasonably necessary for such approvals and permits, and participating in any appeals or regulatory proceedings respecting the Windpower Facilities. To the extent permitted by law, Owner hereby waives enforcement of any applicable setback requirements respecting the Windpower Facilities to be placed on or near the Property that are reasonably necessary, in Grantee's sole and absolute discretion, to carry out Grantee's Windpower Activities on or near the Property.

9.5 Hazardous Materials. Neither Owner nor its Related Persons shall violate any federal, state or local law, ordinance or regulation relating to the generation, manufacture, production, use, storage, release, discharge, disposal, transportation or presence of any Hazardous Material. Owner shall promptly notify Grantee if any such violation occurs. To the best of Owner's knowledge, (i) no underground tanks are now located or at any time in the past have been located on the Property or any portion thereof, (ii) no Hazardous Material has been generated, manufactured, transported, produced, used, treated, stored, released, disposed of or otherwise deposited in or on or allowed to emanate from the Property or any portion thereof other than as permitted by applicable law and (iii) there are no Hazardous Materials in, on or emanating from the Property or any portion thereof which may support a claim or cause of action under any applicable law. Owner certifies it has never received any notice or other communication from any governmental authority alleging that the Property is or was in violation of any applicable law.

9.6 Litigation. No litigation is pending, and, to the best of Owner's knowledge, no actions, claims or other legal or administrative proceedings are pending, threatened or anticipated with respect to, or which could affect, the Property. If Owner learns that any such litigation, action, claim or proceeding is threatened or has been instituted, Owner shall promptly deliver notice thereof to Grantee and provide Grantee with periodic updates of the status of said litigation, action, claim or proceeding that is ongoing.

9.7 Title Insurance and Financing. Owner agrees that Owner shall execute and deliver to Grantee any documents reasonably required by the title insurance company and/or a financing party

within five (5) business days after presentation of said documents by Grantee; provided, however, in no event shall such documents materially increase any obligation or materially decrease any right of Owner hereunder. Owner shall have no obligation to initiate the process to obtain title insurance on behalf of the Grantee.

10. **Assignment**.

10.1 Collateral Assignments. Grantee shall have the absolute right in its sole and exclusive discretion, without obtaining the consent of Owner, to finance, mortgage, encumber, hypothecate, pledge or transfer to one or more Mortgagees any and all of the rights granted hereunder, including the easements granted in Section 2, and/or any or all rights and interests of Grantee in the Windpower Facilities.

10.2 Non-Collateral Assignments. Grantee shall have the right, without the prior consent of Owner, to sell, convey, assign or transfer (including granting co-easements, separate easements, subeasements) any or all of its rights hereunder in and to any or all of the Property provided such transfer is related to a Project. Grantee shall be relieved of all of its obligations arising under this Agreement, as to all or such portion of its interests in the Property transferred, from and after the effective date of such transfer, provided such rights and obligations have been assumed by such transferee.

10.3 Acquisition of Interest. The acquisition of all interests, or any portion of interest, in Grantee by another person shall not require the consent of Owner or constitute a breach of any provision of this Agreement and Owner shall recognize the person as Grantee's proper successor.

10.4 Owner Assignment. Owner shall not sell, convey, assign, or transfer any of its interest in this Agreement, other than pursuant to a sale, conveyance, or transfer of the fee simple interest in the Property, or as a collateral assignment to a bona fide lender with a mortgage in the fee simple interest of the Property. Owner shall not reserve unto itself any interest in this Agreement as to any part of the Property that is conveyed, and any conveyance of the Property shall include a full assignment of all rights in this Agreement with respect to the part of the Property conveyed. In the event that Owner so sells, conveys, assigns, or transfers such interest in the Property, Owner shall deliver written notice of the same to Grantee within fifteen (15) business days after the effective date thereof, which notice shall contain the then-current contact information (name, mailing address, email address, and telephone number) for Owner's successor in interest.

11. **Default and Remedies**.

11.1 If a Party defaults in or otherwise fails to perform an obligation under this Agreement, the non-defaulting Party shall not have the right to exercise any remedies hereunder if the default is cured by the defaulting Party within sixty (60) days of receiving written notice of such default specifying in detail the default and the requested remedy (a "**Notice of Default**"); provided, that if the nature of the default requires, in the exercise of commercially reasonable diligence, more than sixty (60) days to cure, the non-defaulting Party shall not have the right to exercise any remedies hereunder as long as the defaulting Party commences performance of the cure within sixty (60) days of receipt of Notice of Default and thereafter completes such cure with commercially reasonable diligence. Further, if the Parties have a good faith dispute as to whether a payment is due hereunder, the alleged defaulting Party may deposit the amount in controversy (not including claimed consequential, special, exemplary or punitive damages) into escrow with any reputable third party escrowee, or may interplead the same, which amount shall remain undistributed and shall not accrue interest penalties, and no default shall be deemed to have occurred, until final decision by a court of competent jurisdiction or upon agreement by the Parties. No such deposit shall constitute a waiver of the defaulting Party's right to institute legal action for recovery of such amounts.

11.2 Remedies. Except as qualified by Section 12 regarding Mortgagee Protections, should a default remain uncured beyond the applicable cure periods, the non-defaulting Party shall have the

right to exercise any and all remedies available to it at law or in equity, all of which remedies shall be cumulative, including the right to enforce this Agreement by injunction, specific performance or other equitable relief. Notwithstanding anything in this Agreement to the contrary or any rights or remedies Owner might have at law or in equity, if any of Grantee's Windpower Facilities are then located on the Property and Grantee fails to perform any of its obligations hereunder beyond applicable cure periods, Owner shall be limited to pursuing damages and Owner may not commence any action to terminate or cancel this Agreement.

12. **Mortgagee Protection**. In the event that any mortgage, deed of trust or other security interest in this Agreement or in any Windpower Facilities, or any portion thereof (a "**Mortgage**"), is entered into by Grantee, then any person who is the mortgagee, grantee or beneficiary of a Mortgage (a "**Mortgagee**") shall, for so long as its Mortgage is in existence and until the lien thereof has been extinguished, be entitled to the protections set forth in this Section 12. Grantee shall send written notice to Owner of the name and address of any such Mortgagee; provided that failure of Grantee to give notice of any such Mortgagee shall not constitute a default under this Agreement and shall not invalidate such Mortgage.

12.1 Mortgagee's Right to Possession, Right to Acquire and Right to Assign. A Mortgagee shall have the absolute right: (i) to assign its security interest; (ii) to enforce its lien and acquire title to the easement estate by any lawful means; (iii) to take possession of and operate the Windpower Facilities or any portion thereof, to exercise all of Grantee's rights hereunder, and to perform all obligations to be performed by Grantee hereunder, or to cause a receiver to be appointed to do so; and (iv) to acquire the easement estate by foreclosure or by an assignment in lieu of foreclosure and thereafter to assign or transfer the easement estate to a third party. Owner's consent shall not be required for the acquisition of the encumbered easement or subeasement estate by a third party who acquires the same by foreclosure or assignment in lieu of foreclosure.

12.2 Notice of Default; Opportunity to Cure. As a precondition to exercising any rights or remedies as a result of any default of Grantee, Owner shall give a Notice of Default to each Mortgagee of which it has notice, concurrently with delivery of such notice to Grantee. In the event Owner gives a Notice of Default, the following provisions shall apply:

(a) A "**Monetary Default**" means Grantee's failure to pay when due any monetary obligation of Grantee under this Agreement. Any other default by Grantee is a "**Non-Monetary Default**."

(b) The Mortgagee shall have the same period after receipt of the Notice of Default to remedy the default, or cause the same to be remedied, as is given to Grantee, plus, in each instance, the following additional time periods: (i) thirty (30) days, for a total of ninety (90) days after receipt of the Notice of Default in the event of any Monetary Default; and (ii) sixty (60) days, for a total of one hundred twenty (120) days after receipt of the Notice of Default in the event of any Non-Monetary Default, provided that such 120-day period shall be extended for the time reasonably required to complete such cure, including the time required for the Mortgagee to perfect its right to cure such Non-Monetary Default by obtaining possession of Grantee's easement estates in and to the Property (including possession by a receiver) or by instituting foreclosure proceedings, provided the Mortgagee acts with reasonable and continuous diligence. The Mortgagee shall have the absolute right to substitute itself for Grantee and perform the duties of Grantee hereunder for purposes of curing such default. Owner expressly consents to such substitution, agrees to accept such performance, and authorizes the Mortgagee (or its employees, agents, representatives or contractors) to enter upon the Property to complete such performance with all the rights, privileges and obligations of the original Grantee hereunder. Owner shall not take any action to terminate this Agreement in law or equity prior to the expiration of the cure periods available to a Mortgagee as set forth above.

(c) During any period of possession of Grantee's easement estates in and to the Property by a Mortgagee (or a receiver requested by such Mortgagee) and/or during the pendency of any foreclosure proceedings instituted by a Mortgagee, the Mortgagee shall pay or cause to be paid all monetary charges payable by Grantee hereunder which have accrued and are unpaid at the commencement of said period and those which accrue thereafter during said period. Following acquisition of Grantee's easement estate in and to the Property by the Mortgagee or its assignee or designee as a result of either foreclosure or acceptance of an assignment and/or deed in lieu of foreclosure, or by a purchaser at a foreclosure sale, this Agreement shall continue in full force and effect and the Mortgagee or party acquiring title to Grantee's easement estate shall, as promptly as reasonably possible, commence the cure of all of Grantee's defaults which are reasonably susceptible of being cured by the Mortgagee or party acquiring title, hereunder and thereafter diligently process such cure to completion, whereupon such defaults shall be deemed cured without incurring any default hereunder.

(d) Any Mortgagee or other party who acquires Grantee's easement interest in and to the Property pursuant to foreclosure or assignment in lieu of foreclosure shall be liable to perform the obligations imposed on Grantee by this Agreement for such interest so long as such Mortgagee or other party has ownership of the easement estate or possession of the Property.

(e) Neither the bankruptcy nor the insolvency of Grantee shall be grounds for terminating this Agreement as long as all material obligations of Grantee under the terms of this Agreement are performed by the Mortgagee in accordance with the terms hereunder.

(f) Nothing herein shall be construed to extend this Agreement beyond the Term or to require a Mortgagee to continue foreclosure proceedings after a default has been cured. If the default is cured and the Mortgagee discontinues foreclosure proceedings, this Agreement shall continue in full force and effect.

12.3 New Agreement to Mortgagee. If this Agreement terminates because of Grantee's default or if the easement estate is foreclosed upon, or if this Agreement is rejected or disaffirmed pursuant to bankruptcy law or other law affecting creditors' rights, Owner shall, upon written request from any Mortgagee within ninety (90) days after such event, enter into a new agreement for the Property on the following terms and conditions:

(a) The terms of the new agreement shall commence on the date of termination, foreclosure, rejection or disaffirmance and shall continue for the remainder of the Term, at the same rent and subject to the same terms and conditions set forth in this Agreement.

(b) The new agreement shall be executed within thirty (30) days after receipt by Owner of written notice of the Mortgagee's election to enter a new agreement, provided said Mortgagee: (i) pays to Owner all rent and other monetary charges payable by Grantee under the terms of this Agreement up to the date of execution of the new agreement, as if this Agreement had not been terminated, foreclosed, rejected or disaffirmed; (ii) performs all other obligations of Grantee under the terms of this Agreement, to the extent performance is then due and susceptible of being cured and performed by the Mortgagee; and (iii) agrees in writing to perform, or cause to be performed, all non-monetary obligations which have not been performed by Grantee and would have accrued under this Agreement up to the date of commencement of the new agreement, except those obligations which constitute non-curable defaults. Any new agreement granted to the Mortgagee shall enjoy the same priority as this Agreement over any lien, encumbrances or other interest created by Owner.

(c) At the option of the Mortgagee, the new agreement may be executed by a designee of such Mortgagee without the Mortgagee assuming the burdens and obligations of Grantee thereunder.

(d) If more than one Mortgagee makes a written request for a new agreement pursuant hereto, the new agreement shall be delivered to the Mortgagee requesting such new agreement whose Mortgage is prior in lien, and the written request of any other Mortgagee whose lien is subordinate shall be void and of no further force or effect.

(e) The provisions of this Section 12 shall survive the termination, rejection or disaffirmance of this Agreement and shall continue in full force and effect thereafter to the same extent as if this Section 12 were a separate and independent contract made by Owner, Grantee and such Mortgagee, and, from the effective date of such termination, rejection or disaffirmation of this Agreement to the date of execution and delivery of such new agreement, such Mortgagee may use and enjoy said Property without hindrance by Owner or any person claiming by, through or under Owner, provided that all of the conditions for a new agreement as set forth herein are complied with.

12.4 Mortgagee's Consent to Amendment, Termination or Surrender. Notwithstanding any provision of this Agreement to the contrary, the Parties agree that so long as there exists an unpaid Mortgage, this Agreement shall not be modified or amended and Owner shall not accept a surrender of the Property or any part thereof or accept a cancellation, termination or release of this Agreement from Grantee prior to expiration of the Term without the prior written consent of the Mortgagee. This provision is for the express benefit of and shall be enforceable by such Mortgagee.

12.5 No Waiver. No payment made to Owner by a Mortgagee shall constitute an agreement that such payment was, in fact, due under the terms of this Agreement; and a Mortgagee, having made any payment to Owner pursuant to Owner's wrongful, improper or mistaken notice or demand, shall be entitled to the return of any such payment.

12.6 No Merger. There shall be no merger of this Agreement, or of the easement estate created by this Agreement, with the fee estate in the Property by reason of the fact that this Agreement or the easement estate or any interest therein may be held, directly or indirectly, by or for the account of any person or persons who shall own the fee estate or any interest therein, and no such merger shall occur unless and until all persons at the time having an interest in the fee estate in the Property and all persons (including Mortgagee) having an interest in this Agreement or in the easement estate or in the estate of Owner and Grantee shall join in a written instrument effecting such merger and shall duly record the same.

12.7 Estoppel Certificates, Etc. Owner shall execute such estoppel certificates (certifying as to such matters as Grantee may reasonably request, including without limitation that no default by Grantee then exists under this Agreement, if such be the case) and/or consents to assignment (whether or not such consent is actually required) and/or non-disturbance agreements as Grantee, any transferee of Grantee or Mortgagee may reasonably request from time to time. The failure of Owner to deliver any estoppel certificate within fifteen (15) days after Grantee's written request therefor shall be conclusive evidence that (i) this Agreement is in full force and effect and has not been modified; (ii) any amounts payable by Grantee to Owner have been paid through the date of such written request; (iii) there are no uncured defaults by Grantee; and (iv) the other certifications requested by Grantee in its estoppel, are in fact, true and correct. Owner has an affirmative obligation to disclose to Grantee and any all unrecorded interests in and to the Property, including oral leases or agreements, throughout the Term of this Agreement.

13. **Termination**.

13.1 Grantee's Right to Terminate. Grantee shall have the right to terminate this Agreement as to all or any part of the Property at any time and without cause, effective upon written notice to Owner from Grantee.

13.2 Owner's Right to Terminate. Owner shall have the right to terminate all or any portion of its rights in this Agreement after the [_____]th (___th) anniversary of the Effective Date if, at the

time Owner's written termination notice is delivered, Grantee has not commenced construction of Windpower Facilities for the Project on or near the Property. [CONSIDER WHETHER TO INCLUDE THIS IN THE INITIAL PRESENTMENT TO LANDOWNER]

13.3 Effect of Termination. Upon termination of this Agreement, Grantee shall, as soon as practicable thereafter, but not later than one (1) year after the termination, remove above-ground and below-ground (to a depth of three (3) feet below grade) Windpower Facilities from the Property. All Property disturbed by Grantee shall be restored to a condition reasonably similar to its original condition as it existed upon the Effective Date. If Grantee fails to remove such Windpower Facilities within one (1) year of termination of this Agreement, or such longer period as Owner may provide by extension, Owner shall have the right to restore the Property and remove, or to cause removal of, any property owned by Grantee to the extent required by Grantee under this Section 13.3, and the right to receive reimbursement, less the salvage value of the Windpower Facilities, from Grantee for any remaining amounts reasonably incurred for removal and restoration of the Property.

14. **Miscellaneous**.

14.1 Force Majeure. If performance of this Agreement or of any obligation hereunder is prevented or substantially restricted or interfered with by reason of an event of Force Majeure (defined below), the affected Party, upon giving notice to the other Party, shall be excused from such performance to the extent of and for the duration of such prevention, restriction or interference, and the Term or any other time periods herein shall be extended for such period of time. The affected Party shall use its reasonable efforts to avoid or remove such causes of nonperformance and shall continue performance hereunder whenever such causes are removed. "**Force Majeure**" means fire, earthquake, flood, pandemic, or other casualty, condemnation or accident; strikes or labor disputes; war, acts of terrorism, civil strife or other violence; any law, order, proclamation, regulation, ordinance, action, demand or requirement of any government agency or utility, including, without limitation, "stay-at-home" or "shelter-in-place" orders; or any other act or condition beyond the reasonable control of a Party hereto.

14.2 Confidentiality. To the fullest extent allowed by law, Owner shall maintain in the strictest confidence, and Owner shall require each Related Person of Owner to maintain in the strictest confidence, for the sole benefit of Grantee, all information pertaining to the financial terms of or payments under this Agreement, Grantee's site or product design, methods of operation, methods of construction, power production or availability of the Windpower Facilities, and the like, whether disclosed by Grantee or discovered by Owner, unless such information either (i) is in the public domain by reason of prior publication through no act or omission of Owner or any Related Person of Owner, or (ii) was already known to Owner at the time of disclosure and which Owner is free to use or disclose without breach of any obligation to any person or entity. To the fullest extent permitted by law, Owner shall not use such information for its own benefit, publish or otherwise disclose it to others, or permit its use by others for their benefit or to the detriment of Grantee. Notwithstanding the foregoing, Owner may disclose such information to any auditor or to Owner's family members, lenders, attorneys, accountants and other personal advisors; any prospective purchaser of or lenders for the Property; or pursuant to lawful process, subpoena or court order; provided Owner in making such disclosure advises the party receiving the information of the confidentiality of the information and obtains the agreement of said party not to disclose the information.

14.3 Successors and Assigns. This Agreement shall inure to the benefit of and be binding upon Owner and Grantee and, to the extent provided in any assignment or other transfer under Section 10 hereof, any transferee, and their respective heirs, transferees, successors and assigns, and all persons claiming under them. References to Grantee in this Agreement shall be deemed to also include transferees of Grantee that hold a direct ownership interest in this Agreement and actually are exercising rights under this Agreement to the extent consistent with such interest.

14.4 Memorandum; Recording. At Grantee's option: (i) Grantee may record a copy of this Agreement, excluding Exhibit B, or (ii) upon request from Grantee, Owner shall execute in recordable form, and Grantee may then record, a memorandum of this Agreement substantially in the form of Exhibit D attached hereto, incorporating only those non-substantive changes to the form as may be required by the applicable jurisdiction in which recording is sought and to reflect the terms of this Agreement. Owner hereby consents to the recordation of the interest of a transferee of Grantee in the Property. With respect to the First Extended Term and Second Extended Term, upon request from Grantee, Owner shall execute, in recordable form, and Grantee may then record, a memorandum evidencing the First Extended Term and Second Extended Term, as applicable; provided that the execution of such memorandum is not necessary for such First Extended Term or Second Extended Term to be effective.

14.5 Notices. All notices or other communications required or permitted by this Agreement, including payments to Owner, shall be in writing and shall be deemed given when personally delivered to Owner or Grantee, the same day if sent via facsimile with confirmation, or the next business day if sent via overnight delivery or five (5) days after deposit in the United States mail, first class, postage prepaid, certified, addressed as follows:

If to Owner:	If to Grantee:
_____	c/o Invenergy LLC
_____	One S. Wacker Drive, Suite 1800
_____	Chicago, Illinois 60606
Fax: _____	Attn: General Counsel
	Fax: 312-224-1444

Either Party may change its address for purposes of this paragraph by giving written notice of such change to the other Parties in the manner provided in this paragraph.

14.6 Entire Agreement; Amendments. This Agreement, together with all exhibits attached hereto, constitutes the entire agreement between Owner (and its respective successors, heirs, affiliates and assigns) and Grantee (and its respective successors, heirs, affiliates and assigns) respecting its subject matter, and supersedes any and all oral or written agreements. All of the provisions of the Exhibits shall be treated as if such provisions were set forth in the body of this Agreement and shall represent binding obligations of each of the Parties as part of this Agreement. Any agreement, understanding or representation respecting the Property, or any other matter referenced herein not expressly set forth in this Agreement or a previous writing signed by both Parties is null and void. No purported modifications or amendments, including without limitation any oral agreement (even if supported by new consideration), course of conduct or absence of a response to a unilateral communication, shall be binding on either Party unless in a writing signed by both Parties. Provided that no material default in the performance of Grantee's obligations under this Agreement shall have occurred and remain uncured, Owner shall cooperate with Grantee in amending this Agreement from time to time to include any provision that may be reasonably requested by Grantee for the purpose of implementing the provisions contained in this Agreement or for the purpose of preserving the security interest of any transferee of Grantee or Mortgagee.

14.7 Legal Matters. This Agreement shall be governed by and interpreted in accordance with the laws of the State of [_____]. If the Parties are unable to resolve amicably any dispute arising out of or in connection with this Agreement, they agree that such dispute shall be resolved in the state courts located in the County. The Parties agree that any rule of construction to the effect that ambiguities are to be resolved in favor of either Party shall not be employed in the interpretation of this Agreement and is hereby waived. The prevailing Party in any action or proceeding for the enforcement, protection or establishment of any right or remedy under this Agreement shall be entitled to recover its reasonable attorneys' fees and costs in connection with such action or proceeding from the non-prevailing Party.

14.8 Partial Invalidity. Should any provision of this Agreement be held, in a final and unappealable decision by a court of competent jurisdiction, to be either invalid, void or unenforceable, the remaining provisions hereof shall remain in full force and effect, unimpaired by the holding. Notwithstanding any other provision of this Agreement, the Parties agree that in no event shall the Term, or the term of any easement granted herein be longer than, respectively, the longest period permitted by applicable law.

14.9 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one and the same document.

14.10 Tax and Renewable Energy Credits. If under applicable law, the holder of an easement estate becomes ineligible for any tax credit, renewable energy credit, environmental credit or any other benefit or incentive for renewable energy established by any local, state or federal government, then, at Grantee's option, Owner and Grantee shall exercise good faith and negotiate an amendment to this Agreement or replace it with a different instrument so as to convert Grantee's interest in the Property to a substantially similar interest that makes Grantee eligible for such credit, benefit or incentive.

14.11 No Partnership. Nothing contained in this Agreement shall be construed to create an association, joint venture, trust or partnership covenant, obligation or liability on or with regard to any one or more Parties in this Agreement.

14.12 Waiver of Right to Trial by Jury. EACH OF THE PARTIES KNOWINGLY, VOLUNTARILY AND INTENTIONALLY WAIVES THE RIGHT TO A TRIAL BY JURY IN RESPECT OF ANY LITIGATION BASED ON THIS AGREEMENT, OR ARISING OUT OF, UNDER OR IN CONNECTION WITH THIS AGREEMENT AND ANY AGREEMENT CONTEMPLATED TO BE EXECUTED IN CONJUNCTION HEREWITH, OR ANY COURSE OF CONDUCT, COURSE OF DEALING, STATEMENTS (WHETHER VERBAL OR WRITTEN) OR ACTIONS OF ANY PARTY HERETO. EACH OF THE PARTIES TO THIS AGREEMENT WAIVES ANY RIGHT TO CONSOLIDATE ANY ACTION IN WHICH A JURY TRIAL HAS BEEN WAIVED WITH ANY OTHER ACTION IN WHICH A JURY TRIAL CANNOT OR HAS NOT BEEN WAIVED. THIS PROVISION IS A MATERIAL INDUCEMENT TO EACH OF THE PARTIES FOR ENTERING INTO THIS AGREEMENT.

14.13 Public Officials. Owner acknowledges that its receipt of monetary and other good and valuable consideration hereunder may represent a conflict of interest if Owner is a government employee or otherwise serves on a governmental entity with decision-making authority (a "**Public Official**") as to any rights Grantee may seek, or as to any obligations that may be imposed upon Grantee in order to develop and/or operate the Project ("**Development Rights**"), and Owner hereby agrees to (1) recuse him/herself from all such decisions related to Grantee's Development Rights unless such recusal is prohibited by law or is not reasonably practicable considering the obligations of such Public Official's position and (2) recuse him/herself from all such decisions related to Grantee's Development Rights if such recusal is required by law. If Owner is not required pursuant to (1) or (2) above to recuse him/herself from a decision related to Grantee's Development Rights, Owner shall, in advance of any vote or other official action on the Development Rights, disclose the existence of this Agreement (but not the financial terms therein) at an open meeting of the relevant governmental entity Owner serves on as a Public Official. Additionally, if Owner is a Public Official and any of Owner's spouse, child or other dependent has a financial interest in the Project, Owner shall disclose such relationship (but not the financial terms thereof) at an open meeting of the relevant governmental entity Owner serves on as a Public Official, prior to participation in any decision related to Grantee's Development Rights.

[Signatures on Following Page]

IN WITNESS WHEREOF, Owner and Grantee, acting through their duly authorized representatives, have executed this Agreement with the intent that it be effective as of the Effective Date, and certify that they have read, understand and agree to the terms and conditions of this Agreement.

OWNER:

Name[_____]
Entity Type [ ]

By:_____
Name:_____
Title:_____

GRANTEE:

[INVENERGY ENTITY],
a Delaware limited liability company

By: Invenergy LLC, its Manager

By:_____
Name:_____
Title:_____

OR

[*for individuals*]

By:_____
[Name]

[NOTARIAL ACKNOWLEDGEMENT IS ONLY PROVIDED IN THE MEMORANDUM]

EXHIBIT A
Description of the Property

[ENTER LEGAL DESCRIPTION]

EXHIBIT B
Payment Terms

In consideration for the rights provided to Grantee under the Agreement, Grantee agrees to make payments to Owner as follows:

[DEVELOPER TO DELETE ANY OF THE FOLLOWING SECTIONS THAT ARE NOT APPLICABLE FOR EXHIBIT B]

1. Development Term Fees. Within forty-five (45) days of the Effective Date of this Agreement, Grantee shall pay Owner a one-time fee of [_____] Dollars ($[_____]) (which is the equivalent of $[____] per acre of the Property). Until the occurrence of the Operations Date, Grantee shall pay Owner an annual fee of [_____] Dollars ($[_____]) (each a "**Development Term Fee**") within forty-five (45) days of each anniversary of the Effective Date.

2. Operating Fees. Upon commencement of the Operations Date, and for each year during the [First Extended Term (*if extended term dollars to be negotiated at later date)*] or [First Extended Term and Second Extended Term (*if extended term dollars have been negotiated up front)*] (each an "**First Extended Year**"), after giving credit, if any, for any Development Term Fee prepaid for the year in which the Operations Date occurs, Grantee shall pay to Owner the following amounts for Windpower Facilities installed on the Property (collectively, the "**Operating Fees**"):

(a) Wind Turbine Payment. [_____] Dollars ($[_____]) per megawatt of installed nameplate capacity for each Wind Turbine installed on the Property.

(b) Access Road Payment. [_____] Dollars ($[_____]) per lineal foot of access road installed on the Property.

(c) Transmission and Distribution Facilities Payment. [_____] Cents ($[_____]) per lineal foot of transmission and/or distribution line installed on the Property.

(d) Acreage Payment. [_____] Dollars ($[_____]) per acre of Property subject to this Agreement.

(e) Permanent Meteorological Tower Payment. [_____] Dollars ($[_____]) for each permanent meteorological tower installed on the Property.

[Commencing on the first year after the Operations Date, such Operating Fees shall be adjusted upwards by two percent (2%) per year on a compounded basis.] or [Commencing on the first year after the Operations Date, such Operating Fees shall be adjusted upwards by the greater of (i) two percent (2%) per year on a compounded basis or (ii) by the percentage change, if any, in the GDPIPD/ CPI for the preceding available four quarters. "CPI" means the Consumer Price Index for Urban Wage Earners and Clerical Workers (CPI-W) (1982-1984=100)/GDPIPD means the gross domestic product implicit price deflator, as computed and published quarterly by the U.S. Department of Commerce (Index 2000=100), as presented and revised from time to time in the "Gross Domestic Product: [applicable quarter] Quarter 'Final' Press Release" released periodically by the Bureau of Economic Analysis]. The amounts payable hereunder for a calendar year shall be prorated for Windpower Facilities for which the Operations Date or expiration or termination of this Agreement occurs during such year, based on the number of days in such year following the Operations Date or prior to the termination or expiration date. Payments of Operating Fees each year shall be made in two equal semi-annual installments and shall be due within forty-five (45) days of the end

of each semi-annual period (such end being the six-month and one-year anniversary date of the Operations Date).

3. Substation and O & M Fee. If Grantee constructs on the Property either (a) an electrical substation (which term includes, for purposes of this Section, all associated transformers, circuit breakers, interconnection and switching facilities and other associated improvements, facilities, structures, fixtures, appurtenances, appliances, machinery, materials and equipment) (a "**Substation**"), or (b) a permanent operations and maintenance building, (an "**O&M Building**"), (neither a Substation nor an O&M Building shall occupy more than three (3) acres of the Property each unless the Additional Acreage Fee (as defined below) is paid), then of Grantee shall pay to Owner the one-time sum of [_____] Dollars ($[_____]) for each such installed structure (the "**Substation/O&M Fee**"). If Grantee needs additional acreage on the Property above three (3) acres for the Substation or the O&M Building then the Substation/O&M Fee shall be increased by the product of [_____] Dollars ($[_____]) and the number of additional acres, or portions of acres, Grantee needs for each such installed structure (the "**Additional Acreage Fee**"). Grantee shall pay the Substation/O&M Fee and Additional Acreage Fee, if applicable, within sixty (60) days of the Operations Date.

4. Additional Project Improvements. If additional roads or transmission poles or towers are constructed on the Property by Grantee at any time after the third anniversary of the Operations Date, and such roads, poles and towers are not constructed (a) in connection with the installation of additional Wind Turbines on the Property for which Installation Fees would otherwise be due and payable to Owner or (b) because of a casualty, condemnation or other occurrence that requires the replacement of then-existing roads, transmission poles or towers ("**Additional Improvements**"), then Grantee agrees to pay Owner additional consideration in the amount of (i) ____($__.00) per lineal rod, for each such additional road or corridor of transmission poles or towers so constructed; in each case which sum shall be paid one time only, within sixty (60) days after the Additional Improvement is completed, for each such occurrence.

5. Crop Compensation. Grantee shall pay Owner one-time compensation for any and all portions of the Property where permanent Windpower Facilities are not constructed that are either taken out of commercial crop production for a season because of the construction of the Windpower Facilities, or that are removed or damaged as a direct result of Grantee's construction of the Windpower Facilities on the Property ("**Crop Damage Compensation**"). Portions of the Property shall be deemed to have been taken out of commercial crop production only if the Owner was actually farming such portions of the Property immediately prior to Grantee's commencing construction of the Windpower Facilities on the Property. The Crop Damage Compensation shall be deemed full compensation for any losses of income, rent, business opportunities, profits or other losses arising out of such Grantee construction. Crop Damage Compensation shall be equal to the fair market value of the crops that are damaged per season, but a minimum of the following amounts determined by multiplying the total acreage of damaged cultivated crops, specialty crops, pasture or hay on the Property for which Grantee is responsible pursuant to this Agreement by the following amounts: (i) hay at Two Hundred Sixty and no/100 Dollars ($260.00) per acre, (ii) corn at Six Hundred and no/100 Dollars ($600.00) per acre, (iii) oats at One Hundred Seventy-Five and no/100 Dollars ($175.00) per acre, (iv) pasture at Fifty-Five and no/100 Dollars ($55.00) per acre, (v) soybeans at Six Hundred and no/100 Dollars ($600.00) per acre, and (vi) wheat at Six Hundred and no/100 Dollars ($600.00) per acre. If less than one acre of Owner's cultivated crops, pasture or hay on the Property is damaged by Grantee's activities on the Property, the applicable dollar amount per acre shall be reduced proportionally. The Parties shall attempt, in good faith, to agree upon the extent of damage and amount of acreage affected. If the Parties cannot agree, the Parties shall have the area measured and the extent of damage assessed by an impartial party chosen by mutual agreement of the Parties, such as a crop insurance adjuster. [CONFIRM THAT THE HIGHLIGHTED AMOUNTS ARE CURRENT]

6. Compaction Compensation. In addition to payments owed hereunder for crop compensation, if any, Grantee shall pay Owner for areas determined to have significant soil compaction

directly caused by Grantee's activities on the Property ("**Compaction Compensation**") if Grantee fails to de-compact such areas within three (3) months of completion of construction of Windpower Facilities for the Project. Compaction Compensation shall be equal to an amount that is quadruple the fair market value of the crops that Owner had most recently been growing on such Property for the area compacted. In consideration of this payment, no additional damages shall be paid in future years for that incident of soil compaction. The Parties shall try in good faith to agree to the extent of damage and acreage affected. If the Parties cannot agree, the Parties shall have the area measured and the extent of damage assessed by an impartial party chosen by mutual agreement of the Parties, such as a crop insurance adjuster.

7. Late Payment Penalty. If Grantee fails to make any payment to Owner required of it hereunder when due, interest shall accrue on the overdue amount, from the date of expiration of Grantee's cure period until the date paid, at a rate equal to the sum of: (i) two percent (2%) per annum; plus, (ii) the prime lending rate as from time to time may be published by The Wall Street Journal under the "Money Rates" section; provided, that in no event shall such total interest exceed the maximum rate permitted by law.

8. IRS Form W-9/Property Use. Notwithstanding anything in this Agreement to the contrary, Grantee shall have no obligation to make any payment to Owner otherwise required under this Agreement until Owner has (i) returned to Grantee a completed Internal Revenue Service Form W-9 (such W-9 form to either (a) have been provided by Grantee to Owner prior to execution of this Agreement or (b) be provided by Grantee to Owner promptly upon execution of this Agreement), and (ii) inserted in the table below to the best of Owner's knowledge, the approximate acreage of the Property that is currently being used (or has been used within the last five (5) years) for crops, pasture, forest or timber, other agricultural use, or a non-agricultural purpose (e.g., idle land, roadways, parking lot, commercial use, etc.) If none of the acreage falls into one of these categories, put "0" or "None".

Land Type:	**Crop**	**Pasture**	**Forest or Timber**	**Other Agricultural Use**	**Non-Ag Use**
Acreage:	[__]	[__]	[__]	[__]	[_]

9. Payment Instructions. Unless otherwise indicated in the table below, all payments issued hereunder will be paid to Owner, and if Owner is comprised of more than one person or entity, such payments will be issued by a single check payable to all such persons or entities. If Owner elects to have payments made as set forth in the table below, Owner and each person or entity holding record title to the Property hereby acknowledges and agrees that all payments are legally permitted to be made as set forth in the table below and that no other party shall have any right to such payments or to contest the payments and allocations as set forth below. Each person receiving payment pursuant to the table below hereunder agrees to fully indemnify, defend and hold harmless Grantee against claims and liability by any third party in connection with its payments hereunder to the person/entities set forth herein. **Check one below:**

☐ A single check should be issued payable to all persons/entities comprising Owner.

☐ Separate checks should be issued to each Owner as set forth below:

Owner:	**Name 1**	**Name 2**	**Name 3**	**Name 4**
Payment Allocation:	**[__]%**	**[__]%**	**[__]%**	**[__]%**

1st OPTION ALTERNATE LANGUAGE FOR ITEM 2: [(a) For each year during the [First Extended Term (if extended term dollars to be negotiated at later date)] or [First Extended Term and Second Extended Term (if extended term dollars have been negotiated up front) after the Development Term] (each an "**First Extended Term Year**"), Grantee shall pay to Owner as operating fees (the "**Operating Fees**") an amount equal to the greater of the following for each applicable period listed in Table 2(a) below: (i) the product of the number listed in "Column A" in Table 2(a) below as the "Per Acre Amount" and the number of acres of the Property then subject to this Agreement (the "**Per Acre Amount**"); (ii) the product of the number listed in "Column B" in Table 2(a) below as the "Per Megawatt Amount" and number of megawatts of nameplate capacity (as determined by the manufacturer of the Wind Turbines) of Wind Turbines Grantee has then installed on the Property (the "**Per Megawatt Amount**"); (iii) the product of the percent listed in "Column C" of Table 2(a) below as the "**Royalty Rate**" and the annual Gross Revenues (as defined below) actually received by Grantee from Wind Turbines installed on the Property (the "**Royalty Amount**"); and (iv) [_____] Dollars ($[_____]) (the "**Minimum Fee**").

Table 2(a)

Term Year	Column A Per Acre Amount	Column B Per Megawatt Amount	Column C Royalty Rate
Years [1 through 10]	$__.00	$[_____]	[__]%
Years [11 through 20]]	$__.00	[_____]	[__]%
Years [21 through 30]	$__.00	[_____]	[__]%
Years [31 through 40]	$__.00	[_____]	[__]%
Years [41 through 50]	$__.00	[_____]	[__]%

(b) The Operating Fees payable during the First Extended Term [and Second Extended Term] shall be paid as follows:

i. After giving credit, if any, for any Development Term Fee prepaid for the year in which the First Extended Term begins, Grantee shall pay Owner the Royalty Amount in two annual installments during the First Extended Term [and Second Extended Term] Grantee shall pay the first payment of the Royalty Amount, if due, within six (6) months after the Operations Date, and each subsequent payment of the Royalty Amount every six (6) months thereafter during the First Extended Term [and Second Extended Term]; and; and

ii. Within ninety (90) days of the end of each First Extended Term Year, Grantee shall, for the First Extended Term Year directly prior, determine the greater of: (a) the Per Acre Amount, (b) the Per Megawatt Amount, (c) the Royalty Amount, and (d) the Minimum Fee, and shall within ninety (90) days of each such anniversary pay to Owner the positive difference, if any, between the higher of the four amounts and the Royalty Amount already paid by Grantee to Owner for such prior First Extended Term Year.

(c) Gross Revenues.

i. For purposes hereof, the term "**Gross Revenues**" means the aggregate of (a) total revenue actually received by Grantee during the applicable period of time, from the sale, to the purchaser of electricity, of electrical energy generated and sold from Wind Turbines then located on the Property; (b) total revenue actually received from renewable energy credits or pollution credits that directly result from the operation of Wind Turbines on the Property (except for without limitation production tax credits, other tax benefits and credits, or any reimbursement thereof); (c) proceeds actually received pursuant to a business interruption insurance policy or from the manufacturer of any Wind Turbine under the provisions of its warranty therefor, in each case if made specifically in lieu of revenues from the normal operation of such Wind Turbines; and (d) all revenues received by Grantee in hedging transactions which are reduced by Grantee's costs of such hedging transactions (any hedging transaction entered into with an affiliate of Grantee shall be entered into in good faith and on an arm's length basis).

ii. Notwithstanding Subsection (i) above to the contrary, for purposes hereof the term Gross Revenues shall exclude, without limitation, revenues received: (a) from the sale, assignment, transfer or other disposition of Windpower Facilities or any other of Grantee's improvements (and any interest therein); (b) from sales of electrical energy produced by Wind Turbines not located on the Property; (c) from any rental or other payment received by Grantee in exchange for Grantee's assigning, mortgaging or otherwise transferring all or any interest of Grantee in this Agreement; (d) from the sale, modification or termination of any obligation under a power purchase contract; (e) from parasitic or other loss (i.e., electrical energy used to power Windpower Facilities or Windpower Activities, or lost in the course of transforming, shaping, storing, transporting or delivering the electricity); (f) from sales of electrical energy for which payment is not received (including because of a default by the purchaser thereof); (g) as reimbursement or compensation for wheeling costs or other electricity transmission or delivery costs; or (h) from production tax credits, other tax benefits and credits, or any reimbursement thereof received by Grantee in connection with any Project. Additionally, Gross Revenues shall be qualified as follows:

(a) Each power purchase agreement that results in Gross Revenues, and each agreement for the sale of renewable energy credits or pollution credits (but not production tax credits or other tax benefits or credits) that directly results from the operation of Wind Turbines on the Property and that creates Gross Revenues, shall be the product of arms-length negotiations; or, if the transaction is such that arms-length negotiations are not practicable (such as a transaction with an affiliate), then Grantee shall use its good faith commercially reasonable efforts to obtain a fair market price for the energy or credits that is/are the subject of such transaction.

iii. In the event that electrical energy produced from Wind Turbines located on the Property is commingled with electrical energy produced from Wind Turbines located on other lands, then Grantee shall, using such methods, calculations, procedures and/or formulae as Grantee may in good faith adopt, allocate to the Property a portion of the Gross Revenues received from such commingled electrical energy.

ALTERNATE LANGUAGE IF EXTENDED TERM FEE IS NOT NEGOTIATED IN TABLE 2(A) CONTAINED IN 1st OPTION ALTERNATE LANGUAGE ABOVE: [(d) If Grantee extends this Agreement for the Extended Term in accordance with Section 3.3, then the Parties shall at least one (1) year prior to the Expiration of the First Extended Term negotiate in good faith the amount of Operating Fees, Installation Fees, and Substation Fees to be paid during the Extended Term to reflect the then current fair market values, provided however, that no such determination shall be effective until the First Extended Term has ended. The Parties shall meet no earlier than three (3) years and no later than one hundred eighty

(180) days prior to the expiration date of the First Extended Term to attempt to agree on such fair market values. If the Parties are unable to so agree within sixty (60) days after such meeting, then such fair market values for the Extended Term shall be determined by an independent wind power consultant reasonably acceptable to both Grantee and Owner, such consultant shall have at least five (5) years' experience with wind power projects constructed in the United States, not have been an employee of or consultant to either Party, and not have any financial interest in or derived from the Project or the Property (a "**Consultant**"), the Consultant shall complete his determination prior to the expiration date of the First Extended Term. The Parties shall bear the Consultant's costs equally.]

ADDITIONAL PAYMENT OPTIONS TO INCLUDE IN SECTION 2:

a. Installation Fees. Within sixty (60) days of the Operations Date, Grantee shall pay to Owner an amount equal to the product of [_____] Dollars ($[_____]) and the number of Wind Turbines Grantee installed on the Property, provided further, that if subsequent to the Operations Date Grantee installs additional Wind Turbines on the Property then within forty-five (45) days of the completion of the installation of such additional Wind Turbines Grantee shall pay to Owner an additional [_____] Dollars ($[_____]) for each such additional Wind Turbine (the "**Installation Fee**").

b. Overhead Transmission Line Fees; Road Fees. If on the Operations Date there are Grantee installed overhead transmission lines and no Grantee installed Wind Turbines on the Property then Grantee shall pay to Owner a one-time payment of (i) the product of _____($[__.00]) and the number of rods of Grantee installed overhead transmission lines on the Property (the "**Transmission Line Fee**"). Grantee shall also pay Owner an annual payment of _____([$__.00]) for each linear foot of new or improved road installed on the Property by Grantee until its physical removal therefrom ("**Road Fee**"). If due, Grantee shall pay to Owner the Transmission Line Fee and/or Road Fee within forty-five (45) days of the Operations Date.

c. Records and Audit Rights.

i. Along with each payment of Operating Fees, Grantee shall deliver to Owner a statement reasonably showing the basis for the computation thereof.

ii. Grantee shall keep true, accurate and complete books, records, accounts, contracts and data sufficient to support and verify calculation of payments of Operating Fees owed under this Agreement. Owner shall have the right, at all reasonable times and upon reasonable notice, personally or by representative, at the local offices of Grantee, to inspect the books, accounts, contracts, records and data within the possession or control of Grantee pertaining to the production, transportation or sale of electricity produced on the Property or the Project, including, without limitation, statements from third parties which verify the price or quantity of electricity generated by the Windpower Facilities on the Property or the Project; provided that Owner may not take copies of any such information unless agreed to in writing by Grantee, which agreement shall not unreasonably be withheld; and provided further that all such books, accounts, contracts, records, data and statements shall be deemed to be confidential information and shall be subject to Section 14.2 hereof.

EXHIBIT C
Special Conditions

[THIS EXHIBIT SHOULD INCORPORATE ANY TERMS/CONDITIONS REQUESTED OR PROVIDED TO THE LANDOWNER OUTSIDE OF THE STANDARD FORM DOCUMENT. THE LIST OF SPECIAL CONDITIONS CONTAINS SOME COMMON REQUESTS BUT SHOULD NOT BE OFFERED UNLESS REQUESTED BY THE LANDOWNER.]

NOTE TO DEVELOPMENT: Special Conditions are in a separate document available upon request to the Legal Department.

EXHIBIT D
[Form of Recording Memorandum]

[see attached]

[TO BE CONFORMED TO APPLICABLE COUNTY RECORDING REQUIREMENTS]

After recording return to:
Invenergy Wind Development LLC
One South Wacker Drive
Suite 1800
Chicago, Illinois 60606
ATTN: Land Administration

MEMORANDUM OF WIND EASEMENT AGREEMENT

THIS MEMORANDUM OF WIND EASEMENT AGREEMENT (this "Memorandum"), is made, dated and effective as of [_____], 202__ (the "Effective Date"), between **[_____]** (together with [his/her/their/its] successors, assigns and heirs, "Owner"), whose address is [_____], and **[Invenergy entity]**, a Delaware limited liability company (together with its transferees, successors and assigns, "Grantee"), whose address is One South Wacker Drive, Suite 1800, Chicago, IL 60606, with regards to the following:

1. Owner and Grantee did enter into that certain WIND EASEMENT AGREEMENT dated _____ (the "Agreement"), which grants and conveys to Grantee an easement to convert, maintain and capture the flow of wind and wind resources over across and through the real property located in [_____], as more particularly described in Exhibit A attached hereto (the "Property"). Capitalized terms used and not defined herein have the meaning given the same in the Agreement.

2. The Agreement grants certain easements that benefit Grantee, and among other things, contains certain additional terms regarding payments to be made by Grantee to Owner, rights of Grantee and Owner to terminate the grant of easements, compliance with governmental requirements, representations and warranties by Grantee and Owner to each other, third party use restrictions, and other matters.

3. The Agreement shall commence on the Effective Date and continue until the twenty-fifth (25th) anniversary of the earlier of (i) the date [_____] (___) years thereafter, or (ii) the date on which Grantee begins selling electrical energy generated by substantially all of the wind turbines to be included in the Project (as defined in the Agreement) to a third party power purchaser, regardless of whether Windpower Facilities are installed on the Property, and may be extended for an additional period of twenty-five (25) years at Grantee's option in accordance with the terms specified in the Agreement.

4. This Memorandum does not supersede, modify, amend or otherwise change the terms, conditions or covenants of the Agreement, and Owner and Grantee executed and are recording this Memorandum solely for the purpose of providing constructive notice of the Agreement and Grantee's rights thereunder. The terms, conditions and covenants of the Agreement are set forth at length in the Agreement and are incorporated herein by reference as though fully set forth herein. This Memorandum shall not, in any manner or form whatsoever, alter, modify or vary the terms, covenants and conditions of the Agreement.

5. This Memorandum shall also bind and benefit, as the case may be, the heirs, legal representatives, assigns and successors of the respective parties hereto, and all covenants, conditions and agreements contained herein shall be construed as covenants running with the land.

6. Except as otherwise set forth in the Agreement, Owner shall have no ownership, lien, security or other interest in any Windpower Facilities installed on the Property, or any profits derived therefrom, and Grantee may remove any or all Windpower Facilities at any time.

7. This Memorandum may be executed in counterparts, each of which shall be deemed an original and all of which when taken together shall constitute one and the same document.

[signature page to follow]

IN WITNESS WHEREOF, the parties have executed this Memorandum to be effective as of the date first written above.

OWNER:

Name [_____]
Entity Type [ ]

By:_____
Name:_____
Title:_____

GRANTEE:

[INVENERGY ENTITY],
a Delaware limited liability company

By: Invenergy LLC, its Manager

By:_____
Name:_____
Title:_____

OR

[individual only]
By:_____
[Name]

[PLEASE SEE STATE-SPECIFIC EASEMENT FORM FOR CORRECT NOTARIAL ACKNOWLEDGEMENT]

ACKNOWLEDGMENT OF OWNER

STATE OF _____)
) SS.
COUNTY OF _____)

Personally came before me this ____ day of _____, 202__, _____ who executed the foregoing instrument **[individually][as _____ of _____]**, and acknowledged the same.

(S E A L)

Name: _____
Notary Public, State of _____
My Commission Expires:

ACKNOWLEDGMENT OF GRANTEE

STATE OF _____)
) SS.
COUNTY OF _____)

Personally came before me this ____ day of _____, 202__, of _____ who executed the foregoing instrument as _____ of Invenergy LLC, Manager of [Invenergy Entity], and acknowledged the same.

(S E A L)

Name: _____
Notary Public, State of Illinois
My Commission Expires: _____

EXHIBIT A
Description of the Property

[ENTER LEGAL DESCRIPTION]